

24STCV27314 24STCV27314

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Case Number: 24STCV27314 Hearing Date: August 7, 2026 Dept: 408

1.

Defendants Rigby

Creek Senior Living, Inc., The Ensign Group, Inc., and Malcolm Healthcare, Inc.'s Motion to Bifurcate is DENIED.

2.

Defendants Rigby

Creek Senior Living, Inc., The Ensign Group, Inc., and Malcolm Healthcare, Inc.'s Motion for Protective Order is DENIED.

II.

BACKGROUND

On October 18, 2024, Plaintiff Guadalupe Lopez ("Plaintiff") filed a complaint against Defendants KTLA Properties Limited Partnership ("KTLA") and Christine Greenway ("Greenway") alleging causes of action for:

1.

Disability Discrimination;

2.

Failure to Reasonably Accommodate;

3.

Failure to Engage in the Interactive Process;

4.

Failure to Take All Reasonable Steps to Prevent

and/or Remedy Discrimination and/or Retaliation;

5.

Retaliation in Violation of FEHA;

6.

Failure to Re-Hire in Violation of FEHA on
Account of Disability and/or Engagement in Protected Activities;

7.

Wrongful Termination in Violation of Public
Policy;

8.

Violation of Labor Code § 226.7(a);

9.

Unpaid Wages and Penalties;

10. Failure to Provide Accurate Wage
Statements;

11. Failure to Permit Inspection of
Personnel and Payroll Records; and

12. Violation of Labor Code § 558.1.

On November 27, 2024, KTLA filed an answer to Plaintiff's complaint.

On July 7, 2025, Greenway filed an answer to Plaintiff's complaint.

On August 14 and 29, 2025, Plaintiff filed an Amendment to the Complaint naming Does 1 through 7 as John B. Goodman Enterprises, Inc. ("Goodman Enterprises"; The Goodman Group, LLC ("Goodman LLC"); The Goodman Group, Inc. ("Goodman Inc."); Rigby Creek Senior Living, Inc. ("Rigby"); International Equity Partners, LLC ("IEP"); The Ensign Group, Inc. ("Ensign"); and Malcolm Healthcare, Inc. ("Malcolm"), respectively.

On September 19, 2025, Goodman Enterprises, Goodman LLC, and Goodman Inc. filed an answer to Plaintiff's complaint.

On October 16, 2025, pursuant to Plaintiff's request, IEP was dismissed without prejudice.

On January 16, 2026, Plaintiff filed a First Amended Complaint ("FAC") against Defendants KTLA, Greenway, Goodman Enterprises, Goodman LLC, Goodman Inc., Rigby, Ensign, and Malcolm (collectively "Defendants").

On February 18, 2026, KTLA, Greenway, Goodman Enterprises, Goodman LLC, and Goodman Inc. filed an answer to Plaintiff's FAC.

On February 26, 2026, Rigby, Ensign, and Malcolm ("Moving Defendants") filed a Motion to Bifurcate and/or Sequence Discovery. On March 13, 2026, Plaintiff filed an opposition. On June 1, 2026, Moving Defendants filed a reply.

On May 7, 2026, Moving Defendants filed a Motion for Protective Order. On May 26, 2026, Plaintiff filed an opposition. On June 1, 2026, Moving Defendants filed a reply.

On July 1, 2026, the court overruled Moving Defendants' Demurrer to Plaintiff's FAC.

On July 21, 2026, Rigby, Ensign, and Malcolm filed individual answers to Plaintiff's FAC.

III.

MOTION TO BIFURCATE

A. Legal Standard

Code of Civil Procedure section 598 provides that "[t]he court may, when the convenience of witnesses, the ends of justice, or the economy and efficiency of handling the litigation would be promoted thereby, on motion of a party, after notice and hearing, make an order... that the trial of any issue or any part thereof shall precede the trial of any other issue or any part thereof in the case, except for special defenses which may be tried first pursuant to Sections 597 and 597.5." (Code Civ. Proc., § 598.) The objective of Code of

Civil Procedure section 598 “is avoidance of the waste of time and money caused by the unnecessary trial of damage questions in cases where the liability issue is resolved against the plaintiff.” (Horton v. Jones (1972) 26 Cal.App.3d 952, 955.)

Code of Civil Procedure section 1048 allows the court to bifurcate issues “in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy.” (Code Civ. Proc. § 1048(b); see also Code Civ. Proc. § 128 [court’s inherent authority to fairly and efficiently administer judicial proceedings].) A court has discretion to order separate trials of issues and determine the order in which those issues are to be decided. (Huff v. Securitas Security Services USA, Inc. (2018) 23 Cal.App.5th 745, 762.) The trial court’s decision will not be overturned in absence of an abuse of discretion. (Ibid.)

B. Discussion

Moving Defendants

seek to bifurcate the proceedings to adjudicate (1) KTLA’s liability, if any, on Plaintiff’s employment claims, followed by Moving Defendants’ (2) successor liability, and (3) alter ego, if necessary. (Motion, at p. 11.) Moving Defendants argue that bifurcation promotes judicial economy and efficiency. (Id., at pp. 11-12.) Moving Defendants also argue that as Plaintiff is not entitled to a jury trial on any of her claims against the Moving Defendants based on their equitable nature, these issues should be bifurcated and heard by the court only after completion of the jury trial on Plaintiff’s claims against KTLA. (Id., at p. 12.) Moving Defendants also seek to sequence or stay discovery as to Moving Defendants. (Id., at pp. 14-17.)

The court finds

that bifurcation

into equitable and legal phases would entail a significant amount of duplicative testimony and evidence. There is no practical benefit in deciding the equitable claims against Moving Defendants in a separate trial and sequencing or staying discovery would merely delay the resolution of this matter. As such, neither the ends of justice, convenience of witnesses, nor judicial economy are served by deciding the equitable claims separately.

Accordingly, the motion is denied.[1]

IV.

MOTION FOR PROTECTIVE ORDER

A. Legal Standard

"[A]ny party may obtain

discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence."

(Code Civ. Proc., § 2017.010.) " 'An order compelling discovery must rest on a showing that the discovery is reasonably calculated to lead to admissible evidence....' " (Cadiz Land Co. v. Rail Cycle (2000) 83 Cal.App.4th 74, 117.) "[I]t is difficult to define at the discovery stage what evidence will be relevant at trial. Therefore, the party seeking discovery is entitled to substantial leeway. [Citation.] Furthermore, California's liberal approach to permissible discovery generally has led the courts to resolve any doubt in favor of permitting discovery [Citation.] In doing so, the courts have taken the view if an error is made in ruling on a discovery motion, it is better that it be made in favor of granting discovery of the nondiscoverable rather than denying discovery of information vital to preparation or presentation of the party's case or to efficacious settlement of the dispute. [Citation.] The courts have also taken the view that wherever possible objections to discovery should be resolved by protective orders addressing the specific harm shown by the respondent as opposed to a more general attack on the 'relevancy' of information the proponent seeks to discover." (Norton v. Superior Court (1994) 24 Cal.App.4th 1750, 1761.) However, "[t]he court shall limit the scope of discovery if it determines that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence." (Code Civ. Proc., § 2017.020.)

"The court, for good

cause shown, may make any order that justice requires to protect any party, deponent, or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense." (Code Civ. Proc., § 2025.420 subd. (b).) "[T]he issuance and formulation of protective orders are to a large extent discretionary." (Raymond

Handling Concepts Corp. v. Superior Court (1995) 39 Cal.App.4th 584, 588.)

B. Discussion

Moving Defendants seek a protective order providing that Moving Defendants do not have to respond to discovery until after this court rules on their bifurcation motion. (Motion, at p. 3.) Moving Defendants also request an order directing Plaintiff to limit the number of special interrogatories that she may direct to any Moving Defendant to the statutory limit of 35. (Ibid.)

The court finds that the request to issue a protective order staying discovery until after a ruling on the bifurcation motion is moot as the court has concurrently denied bifurcation for the reasons stated above.

Moreover, Moving Defendants fail to demonstrate good cause to issue a blanket limit on Plaintiff's special interrogatories based on the number of defendants and theories of liability at issue. However, the court encourages the parties to meet and confer in an effort to narrow the interrogatories and limit the discovery issues the court should adjudicate through an appropriate motion.

Accordingly, the motion is denied.

V.

CONCLUSION

1.

Defendants Rigby Creek Senior Living, Inc., The Ensign Group, Inc., and Malcolm Healthcare, Inc.'s Motion to Bifurcate is DENIED.

2.

Defendants Rigby Creek Senior Living, Inc., The Ensign Group, Inc., and Malcolm Healthcare, Inc.'s Motion for Protective Order is DENIED.

[1] The

court notes that the issue of bifurcation can be revisited at a later stage in litigation to the extent that Moving Defendants demonstrate bifurcation would in fact promote judicial economy and efficiency following discovery.